

This motion was filed with insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) As defendant filed his moving papers on May 15, 2026 for a hearing initially scheduled for June 2, 2026, defendant provided a mere 11 court days' notice. This court's decision to continue the hearing to June 23, 2026 for scheduling purposes does not cure this issue and the motion is procedurally deficient.

Defendant's request for judicial notice is granted as to Exhibit B in its entirety and Exhibit F to the extent the document is a filed court record. However, the court does not take judicial notice of the arguments or information declared therein. The request for judicial notice is denied as to Exhibits A and E, because defendant did not provide a copy of these documents with its request. The request for judicial notice is denied as to Exhibits C and D because they are not judicially noticeable documents. (Evid. Code, §§ 451, 452.)

Substantively, the motion lacks merit. The same arguments defendant raises today have already been considered by this court for prior motions and by the Appellate Division. While defendant acknowledges in his briefing that the Appellate Division affirmed his appeal, and the Third District Court of Appeal declined extraordinary relief, and the California Supreme Court dismissed review of the matter, defendant does not acknowledge that this means the June 8, 2023 judgment is final. The only relief available at this stage of the proceedings is pursuant to Code of Civil Procedure section 473(d), as the court may at any time set aside a void judgment. However, that defendant disagrees with the decisions of this court and the Appellate division does not constitute a void judgment. Defendant fails to show the judgment is void. The court also observes the instant motion lacks any legal basis or justification and is frivolous as defined in Code of Civil Procedure section 128.5(b)(2). The motion is denied.

Defendant is on notice the court intends to summarily deny any similar future motions as the judgment is long since final and all possible avenues for review have been exhausted.

2. M-CV-0093201 All In Credit Union v. Paletta, Jason Raymond

The motion is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093623 Sunbelt Rentals v. Timothy P Hansen

Defendants' motion to set aside default

On January 12, 2026, defendants Timothy P. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021; Cheryl L. Hansen, individually and as trustee of the Timothy P. Hansen and Cheryl L. Hansen revocable trust dated 08/10/2021 filed a motion to set aside the default entered on November 19, 2025, pursuant to Code of Civil Procedure sections Code of Civil Procedure § 473(b).

On June 2, 2026, the court adopted a tentative ruling to continue this matter for defendants to serve this motion on defendant Diego Ibarra. Although defendants noticed the continued hearing, defendants attempted to serve defendant Diego Ibarra by electronic service (email) when defendant Ibarra, who appears pro per, has not expressly consented to electronic service (email). (Code Civ. Proc., § 1010.6, subd. (c).)

Therefore, the motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005 (b).) This timeline is extended depending upon the method of service. (See generally *id.*) The court continues the motion to set aside default to **August 11, 2026, at 8:30 a.m. in Department 32**. Moving defendants are directed to properly serve this motion on defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by July 1, 2026.

4. M-CV-0095253 Capital One v. Hafeez, Ashley

Defendant's demurrer to plaintiff's complaint and defendant's motion to quash

Demurrer to Complaint

Defendant demurs to plaintiff's complaint filed December 5, 2025, which alleges a single cause of action for breach of contract and seeks damages in the amount of \$4,560.71.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

"The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result." (*CSAA Ins. Exch. v. Hodroj*, 72 Cal. App. 5th 272, 276 (2021).) Here, plaintiff adequately alleges all requisite elements of a breach of contract claim in that plaintiff alleges (1) the parties entered into a written contract on or about January 17, 2014, with a copy of the agreement attached as Exhibit A; (2) defendant breached the agreement on or about January 16, 2025, by "fail[ing] to make payments on the contract as agreed, and despite plaintiff's demand, defendant continues to refuse to pay plaintiff the amount owed under the contract. Defendant is in default and plaintiff is entitled to the unpaid balance"; (3)